

SENATE No. 938

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to require disclosure of conflicts of interests in academic institutions.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 938

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 938) of Jason M. Lewis for legislation to require disclosure of conflicts of interests in academic institutions. Higher Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 833 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to require disclosure of conflicts of interests in academic institutions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 30A the following section:-

3 30B. (a) As used in this section, the following words shall have the following meanings:-

4 “Institution” any institution within the public system of higher education as set forth in
5 section 5 of chapter 15A or any independent institution of higher education.

6 (b) The board of higher education shall require each institution to maintain a written
7 conflict-of-interest policy that is designed to eliminate or minimize potential conflicts of interest
8 that may arise for any faculty or staff member that in the course of his or her academic work, or
9 as a result of his or her specific academic expertise, develops a financial relationship with any

entity other than his or her primary employer or a government agency. This policy shall be made available online for public review.

(c) Said board shall require any faculty or staff member of an institution who has a financial relationship with any entity other than his or her primary employer or a government agency to disclose this relationship publicly. This information shall be made available online for public review. A financial relationship includes anything of material monetary value received, including a salary, consulting fee, honorarium or other payment for service; equity interests, including stocks, stock options or other ownership interests; and intellectual property rights, including patent rights owned by the investigator or on which a clinical investigator is a named inventor (whether licensed or not), copyrights and royalties.

(d) Said board shall collaborate with the state ethics commission to issue guidelines that assist institutions in developing conflict-of-interest policies and in complying with this section. Such guidelines shall take into consideration existing conflict of interest policies that may already have been adopted by some institutions in the Commonwealth and shall seek to identify best practices in minimizing conflicts of interest that may arise in institutions.

SECTION 2. The board of higher education shall issue the guidelines required pursuant to subsection (d) of section 30B of chapter 69 of the General Laws no later than 270 days after passage of this act.